

		Payment History.) Borrower has remained continuously in default. (Otero Decl., ¶ 7.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under the Loan Agreement and declare a breach, making the entire outstanding balance of \$104,671.47 due and payable. (SSUMF, ¶ 7.) Plaintiff has demanded payment from both Borrower and Kareem/Guarantor for the amount due under the Loan Agreement and Guaranty. (SSUMF, ¶ 8.) Despite Plaintiff's demand, Borrower and Kareem/Guarantor have both failed to pay the amounts due under the Loan Agreement and Guaranty. (SSUMF, ¶ 9.) Based on the foregoing, the Court finds there exists a valid written Guaranty between Plaintiff and Guarantor for Guarantor to fulfill the obligations and duties of Borrower under the Loan Agreement, and Plaintiff has performed its obligations under the Loan Agreement. By failing to make payments when due, Borrower has defaulted under the Loan Agreement, and by failing to pay the amounts due under the Loan Agreement upon demand, Guarantor has breached the Guaranty. Plaintiff has been damaged in the outstanding loan balance in the amount of \$104,671.47. The Court GRANTS summary judgment as to the second cause of action for breach of guaranty against Defendant and Guarantor Lee Kareem. Plaintiff's counsel shall prepare and submit a proposed Order and a proposed Judgment. Plaintiff to give notice.
111	NFS Capital, LLC vs. Alva Manufacturing, Inc., 2025-01495506	APPLICATION FOR WRIT OF POSSESSION – DENIED WITHOUT PREJUDICE Plaintiff seeks a Writ of possession after hearing for "The machining equipment as defined in detail in Attachment 4." It is unclear to the Court what specific equipment is subject to the requested writ. The documents attached to attachment 4 are invoices. One appears to be for a

		license, not equipment. One invoice appears to be for one piece of machinery plus multiple other items. Application is denied without prejudice. The property sought to be recovered must exist in some concrete or tangible form, capable of identification and seizure. (Lamus v. Engwicht (1919) 39 Cal.App. 523, 529.) Here, the twenty-four pages of invoices comprising attachment 4 to the application for writ does not render the property identifiable for the Court, the Sheriff, or Defendant. Court to give notice.
112	Nguyen v Le	OFF CALENDAR – REFERRED TO IDC
113	Robicheaux vs. Rowshan, 2022-01261647	MOTION FOR LEAVE TO FILE AMENDED CROSS-COMPLAINT – GRANTED The liberal policy of permitting amendments to pleadings virtually requires that this Court grant the motion. Whether the proposed amendments to the cross-complaint violate the doctrine of judicial estoppel is not properly addressed by the Court in ruling on this motion. The proposed third amended cross-complaint attached as exhibit 1 to the declaration of Jessie Gessin shall be filed within 5 court days of the date of this order.
114	Ronald W. Makarem, A Professional Corporation vs. Get Buzzed LLC, 2025-01531850	DEMURRERS – OVERRULED IN PART AND SUSTAINED IN PART WITH 20 DAYS LEAVE TO AMEND MOTION TO STRIKE – GRANTED IN PART WITH 20 DAYS LEAVE TO AMEND AND DENIED IN PART Ronald W. Makarem, APC sued Get Buzzed LLC dba Bee the Buzz Media (“Get Buzzed”), Brian Meikle, and Lisa Mullins for 1) Fraud & Deceit; 2) Breach of Contract; 3) Violation of Penal Code §496; 4) Conversion; 5) Negligence’ and 6) Violation of UCL, arising out of defendants’ failure to properly provide contracted-for marketing services. Plaintiffs’ first amended complaint (FAC) is the operative complaint. Defendant Meikle demurs to the entirety of the FAC. Get Buzzed and Mullins demur to the third through sixth causes of action, and move to strike portions of the FAC.